

# Rajasthan Sports (Registration, Recognition and Regulation of Associations) Act, 2005

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State of Rajasthan - Act

Rajasthan Sports (Registration, Recognition and Regulation of Associations) Act, 2005

RAJASTHAN

India

Rajasthan Sports (Registration, Recognition and Regulation of Associations) Act, 2005

Act 4 of 2005

Published on 31 March 2005

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Rajasthan Sports (Registration, Recognition and Regulation of Associations) Act, 2005

(Act

No. 4 of 2005

)

Last Updated 29th May, 2019

(Received the assent of the Governor on the 31th March, 2005)

An Act to provide for registration, recognition and regulation of sports Associations and to facilitate and regulate the activities and affairs of the Sports Association in the State of Rajasthan and also to provide for recognition and regulation of the right to represent the State of Rajasthan and the various Revenue District in the State.

Be it enacted by the Rajasthan State Legislature in the Fifty-sixth Year of the Republic of India, as follows: -

Chapter I

Preliminary

1.

Short title, commencement and extent.

(1)

This may be called the Rajasthan Sports (Registration, Recognition and Regulation of Associations) Act, 2005.

(2)

It extends to the whole of the State of Rajasthan.

(3)

It shall be deemed to have come into force on and from 18.8.2004.

2.

Definitions.

- In this Act, unless the context otherwise require,-

(a)

"Ad-hoc Executive Committee" means an Executive Body, which is temporarily entrusted with the management of the affairs of a Sports Association by the Registrar under Sections 24 and 26 of this Act,

(b)

"affiliation" means establishment of a relationship for the purpose of achieving the objectives of this Act;

(c)

"Annual General Meeting" means the annual meeting of the General Body of a Sports Association;

(d)

"Certificate of Affiliation" means the document issued by the Rajasthan State Sports Council, a State Level Sports Association or a District Level Sports Association while granting Affiliation under the provisions of this Act and shall include a letter of Affiliation issued by the Rajasthan Olympic Association,

(e)

"District" means a revenue district in the State of Rajasthan,

(f)

"District Level Sports Association" means a sports unit which represents a Revenue District , in a particular game or sports and is duly affiliated to the concerned District Sports Council, State Level Sports Association and District Olympic Association, and whose affiliating State Level Sports Association has applied for registration to the Registrar;

(g)

"District Sports Council" means a Council operating in a Revenue District under the control of the Rajasthan State Sports Council;

(h)

"election" means election of the Executive Body of a Sports Association;

(i)

"Executive Body" means a group of duly elected persons who manage and control the affairs of a Sports Association, by whatever name such body may be called,

(j)

"Extraordinary General Meeting" means a special meeting of the General Body of a Sports Association other than an Annual General Meeting;

(k)

"General Body" means the body of all voting and non-voting members of a Sports Association;

(l)

"Government" means the Government of the State of Rajasthan;

(m)

"Observer" means a person appointed by the Registrar, the Rajasthan State Sports Council, a District Sports Council or a Sports Association for monitoring of Elections or any other proceedings of a Sports Association in accordance with the provisions of this Act;

(n)

"Office Bearer" means any person who holds the post of the President, Secretary or Treasurer in the Executive Body of a Sports Association;

(o)

"Primary Sports Body" means a sports unit operating in a revenue district which neither a State Level Sports Association nor a District Level Sports Association and is working at sub-division or tehsil or city or village level and is constituted by individuals and is affiliated to a District Level Sports Association;

(p)

"Rajasthan Olympic Association" means the Association constituted for the purposes of representation of the State of Rajasthan in the National games and which is recognized as such by the Indian Olympic Association and is duly affiliated to the Rajasthan State Sports Council;

(q)

"Rajasthan State Sports Council" means the Council registered under the Societies Registration Act, 1958 (Act No. 28 of 1958) bearing Registration No. 93/Jaipur/69-70;

(r)

"Registrar" means the Registrar referred to in Section 4 of the Rajasthan Cooperative Societies Act, 2001 (Act No. 16 of 2002

) to perform the functions of the Registrar and includes any person appointed to assist the Registrar when exercising all or any of the powers of the Registrar;

(s)

"Regulations" means regulations framed by the Executive Body of a Sports Association in the matter of conducting tournaments, coaching, training, Umpire's clinic or any other matter not covered under the bye-laws;

(t)

"Special Resolution" means a resolution passed by two third majority of members present and voting in a General Body meeting, the minutes of which meeting are recorded and signed by the Office Bearers and attested by the Observer if any presence of at least half of the total number of voters shall constitute a quorum for this purpose;

(u)

"Sports Association" means a State Level Sports Association, District Level Sports Association or a Primary Sports Body constituted to promote sports and games in the State;

(v)

"State Level Sports Association" means an elected representative body of District Level Sports Associations, for Particular game or sports in the State which is duly affiliated to the Rajasthan State sports Council and affiliated to Rajasthan Olympic Association, and being eligible under Schedule 'B' has applied for registration under this Act to the Registrar.

## Chapter II

### Registration and Constitution

3.

Compulsory registration.

- Sports Association defined under this Act, other than a Primary Sports Body, is required to be registered under the provisions of this Act.

4.

Registrar.

(1)

The Registrar of Co-operative Societies for the State shall be the Registrar for the purposes of this Act, and he may obtain the assistance of the Rajasthan State Sports Council for discharge of his functions under the provisions of this Act.

(2)

The Government may, by general or special order and subject to such conditions as it may think fit to impose, confer any officer the Power to perform the duties of Registrar under this Act.

(3)

The Registrar may, by general or special order and subject to such conditions as he may think fit to impose, delegate all or any of his powers or functions under this Act to an officer subordinate to him.

(4)

The officer to be appointed under sub-sections (2) and (3) above shall not be below the Rank of a Junior Scale Officer of Rajasthan Co-operative Services or equivalent.

5.

Application for Registration of Sports Associations.

(1)

A State Level Sports Association enlisted in Schedule 'B' and any other future State Level Sports Association for a game or sports not presently covered by Schedule "B" and added to Schedule 'B' under the provisions of this Act and its affiliated District Level Sports Associations shall apply for registration of the Association, stating therein the name, address, area represented, game or sports represented by the Sports Association and with, complete details of the Executive Body and accompanied with the documents specified in Schedule 'A'.

(2)

A District Level Sports Association may be permitted a time of upto nine months for making an application for registration after its affiliating State Level Sports Association has received the Certificate of Registration.

(3)

Registration fee of rupees two hundred fifty or such other fee as may be re-determined and notified by the Government from time to time shall be chargeable for registration.

6.

Registration of Sports Associations.

(1)

After the Registrar is satisfied that the proposed Sports Association complies with the provisions of this Act, he shall, within thirty days from the date of receipt of application, register the Sports Association together with its bye-laws and issue a certificate thereof under his hand and seal.

(2)

If the Registrar finds that the requirement of sub-section (1) is not satisfied, he may, after giving a fifteen days' notice to the applicant and an opportunity of being heard, pass appropriate order.

7.

Framing of Constitution of a Sports Association.

- Subject to the provisions of this Act, every Sports Association shall frame its Constitution which shall consist of the following:-

(a)

Part 'A' - Memorandum containing its aims and objectives and area of operation.

(b)

Part 'B' - Bye-Laws.

8.

Bye-Laws.

(1)

Subject to the provisions of this Act, every Sports Association which seeks registration under this Act shall make, amongst other things, the following provisions in its bye-laws:-

(a)

Executive Body of the Sports Association shall be elected in a democratic manner in periodical elections.

(b)

Elections of the Executive Body shall be held at least once in every four years.

(c)

District Level Associations shall make provisions to abide by those decisions or directions of the concerned State Level Sports Association, which are in consonance with the provisions of this Act.

(d)

Provisions to encourage the Sports and Sports persons of every section of society without any discrimination.

(2)

Every Sports Association shall incorporate a procedure for elections in its bye-laws, which shall, among other provisions, comprise the following:-

(a)

Provision of an independent election officer.

(b)

Publication of a voters list before issue of notice of elections.

(c)

Minimum 21 days' notice for election, issued under the name and seal of the Secretary of the Association accompanied by the audited accounts for the previous year and valid voters list.

(d)

Provision for receiving nominations at least 3 days in advance.

(e)

Provision for holding elections by Secret Ballot.

(3)

Subject to the provisions of sub-section (4), every amendment in the bye-laws shall be passed by a Special Resolution and shall be approved and registered by the Registrar under the provisions of this Act.

(4)

If the Registrar is of the opinion that the proposed amendment is not in accordance with the provisions of this Act, he may return the proposed amendment along with the reasons to the Sports Association for reconsidering the same. The Sports Association shall, thereafter, reconsider the proposed amendment and may resubmit fresh proposed amendments to the Registrar after bringing it in accordance with the provisions of this Act and after meeting the objections made. Thereafter the Registrar shall either approve or disapprove the proposed amendment and communicate his order with reasons to the concerned Sports Association.

9.

Membership of a Sports Association.

(1)

Every District Level Sports Association, registered under this Act, shall be a member of the concerned State Level Sports Association.

(2)

A Primary Sports Body shall be a member of the concerned District Level Sports Association.

(3)

Subject to the provisions of this Act, any addition, deletion or change in membership can be made only at a General Body meeting of a Sports Association.

(4)

A Sports Association may prescribe conditions and procedure of granting membership in its bye-laws.

10.

Minimum requirement of constituting a Sports Association.

(1)

A State Level Sports Association shall be constituted by a minimum of six District Level Sports Associations;

(2)

A District Level Sports Association shall be constituted by a minimum of three Primary Sports Bodies;

(3)

A Primary Sports Body shall be constituted by a minimum of seven individuals.

11.

Composition of the Executive Body.

- There shall be a minimum of five and a maximum of twenty one members including the Office Bearers in the Executive Body of a Sports Association.

12.

Rajasthan Olympic Association and District Olympic Association.

(1)

Notwithstanding anything contained in this Act, the Rajasthan Olympic Association shall be given affiliation by the Rajasthan State Sports Council, and shall be considered as a State Level Sports Association and shall give affiliation to the State Level Sports Associations registered under this Act for the games or sports recognized for participation in the

Olympic Games, Asian Games or Commonwealth Games and for the purposes of representing the State of Rajasthan in, the National Games or any other events conducted by the Indian Olympic Association.

(2)

District Olympic Associations shall affiliate the District Level Sports Associations registered under this Act.

(3)

The Rajasthan Olympic Association or any of its affiliated bodies may perform any other task relating to sports which the Government of Rajasthan or Rajasthan State Sports Council may entrust it with.

(4)

Rajasthan Olympic Association and its constituent District Olympic Associations shall issue letters of Affiliation to the registered Sports Associations falling under the sub-section (1) and sub-section (2) within thirty days of the application made by such an Association.

### Chapter III

#### Elections

13.

#### Elections.

(1)

Election of the Executive Body of a State Level Sports Association shall be held in the presence of an Observer of the Rajasthan State Sports Council Election of the Executive Body of a District Level Sports Association shall be held in the presence of Observer of its State Level Sports Association and Observer of the District Sports Council.

(2)

On conclusion of the election of the Executive Body of a Sports Association the election officer shall issue a certificate duly countersigned by the Observer(s) giving the names and addresses of the elected members. On issuance of such certificate the elected Executive Body shall take charge of the Sports Association. The election officer shall send the copies of such certificate to the Registrar and the Rajasthan State Sports Council.

14.

#### Voting right.

(1)

Every member of a Primary Sports Body Shall have the right to cast one vote in the election of its Executive Body.

(2)

Each affiliated Primary Sports Body shall have the right to cast one vote on behalf of that Primary Sports Body for the election of the Executive Body of a District Level Sports Association.

(3)

Each affiliated District Level Sports Association shall have the right to cast one vote on behalf of that District Level Sports Association for the election of the Executive Body of a State Level Sports Association.

(4)

No individual member shall have a right to cast vote for the election of the Executive Body of a District Level Sports Association or a State Level Sports Association.

(5)

Procedure for determining the authorisation of persons for the purpose of casting a vote on behalf of a Sports Association may be as prescribed in the Bye-laws of a Sports Association.

15.

#### Eligibility for contesting elections.

(1)

All individual members are eligible to contest the elections of a Primary Sports Body.

(2)

Elected Office Bearers of all affiliated Primary Sports Bodies are eligible to contest the elections of a District Level Sports Association.

(3)

Elected Office Bearers of all affiliated District Level Sports Associations are eligible to contest the elections of a State Level Sports Association.

(4)

Anyone contesting election must possess the qualifications prescribed in Schedule "C" of this Act on the date of notification of the elections.

#### Chapter IV

##### Settlement of Disputes

16.

##### Conciliation and Arbitration.

(1)

If any dispute arises touching the constitution, management activity, election or claim to affiliation of any Sports Association, the same shall be resolved through conciliation and arbitration.

(2)

The Arbitration and Conciliation Act, 1996 (Central Act No. 26 of 1996), as amended from time to time, shall apply to the conciliation and arbitration proceedings referred under sub-section (1).

#### Chapter V

##### Accounts, Audit and Inspection

17.

##### Accounts.

- Every Sports Association shall keep its accounts up to date.

18.

##### Audit.

- Every State Level Sports Association shall get its accounts audited by a Chartered Accountant and shall make appropriate arrangement for auditing of accounts of its affiliated District Level Sports Associations.

19.

##### Returns.

- The statement of the audited accounts shall be sent within six months of the closing of the financial year by the Primary Sports Body to its District Level Sports Association; by the District Level Sports Association to its State Level Sports Association; and by the State Level Sports Association to the Rajasthan State Sports Council.

20.

##### Power to call for Records and Inspection.

(1)

The Registrar or the Rajasthan State Sports Council may call for any record of a Sports Association required for an enquiry under this Act.

(2)

The State Level Sports Association may call for any record of an affiliated District Level Sports Association required for an enquiry under this Act.

#### Chapter VI

##### Disaffiliation, Inquiry and Disqualification

21.

##### Disaffiliation.

(1)

A State Level Sports Association may after giving due hearing disaffiliate any District Level Sports Association which has not fulfilled any of the obligations laid down in the Chapter VIII of this Act for two years in succession and inform the Registrar, who may take appropriate action under Section 24.

(2)

The Rajasthan State Sports Council may after giving due hearing, disaffiliate any State Level Sports Association which has not fulfilled any of the obligations laid down in the Chapter VIII of this Act for two years in succession and inform the Registrar who may take appropriate action under Section 24.

22.

##### Grounds for Disqualification.

(1)

A Sports Association shall be liable to action on any of the following grounds:-

(a)

if the Sports Association fails to maintain accounts and submit the same under Section 19 or fails to produce the same when called for inspection.

(b)

if the Sports Association fails to hold elections in accordance with its bye-laws, or, as the case may be, when enjoined by the provisions of Chapter VII.

(c)

if the Sports Association fails to carry out its obligations under Chapter VIII.

(d)

if the Sports Association or any of its Office Bearers or any other member of the Executive Body misappropriates the funds for his personal gains or mismanages the affairs of the Sports Association to give undue benefit to any other person.

(e)

if the Sports Association is disaffiliated under Section 21.

(2)

A State Level Sports Association may after giving opportunity of being heard, recommend to the Registrar that a District Level Sports Association affiliated to it may be disqualified if it-

(a)

does not follow the directions of the State Level Sports Association in the matter of conducting tournaments and flouts its Regulations;

(b)

does not pay the affiliation fee;

(c)

otherwise violates the provisions of its own registered bye-laws.

23.

Inquiry.

(1)

The Registrar may,-

(a)

on the request of a State Level Sports Association, or

(b)

on the request of not less than one tenth of the total members of a Sports Association, or

(c)

on his own motion,

hold an enquiry, either himself or by a person duly authorised by him.

(2)

The Registrar or the person authorised by him shall, for the purpose of any inquiry have all the powers to inspect records, direct production and take copy of any document of the concerned Sports Association for the purpose of the enquiry.

24.

Disqualification.

(1)

After holding an inquiry the Registrar, after giving an opportunity of being heard to the affected Sports Association, may-

(a)

appoint an Ad-hoc Executive Committee and cause to hold fresh elections of the Executive Body within three months;

(b)

in the case of misappropriation of funds, take action in accordance with law.

(2)

No existing Office Bearer of a Sports Association which is disqualified under sub-section (1) shall be permitted to contest elections of any Sports Association for a period of six years from the date of such disqualification.

25.

Prohibition to represent or to use the name of the State and Districts.



(1)

No person or group of persons, either individually or collectively shall represent or be allowed to represent the State of Rajasthan in any games or sports without being authorised by a State Level Sports Association.

(2)

No Sports Association shall be entitled to use the description 'Rajasthan' or use the name of a District as part of its name or undertake any Sports activity which results in representing the State of Rajasthan or a District, as an affiliated unit of any National Federation, Board, or Association purporting to represent India, or in any other manner whatsoever, unless such Sports Association is registered as a State Level Sports Association or a District Level Sports Association under this Act.

(3)

Whoever contravenes the provisions of sub-secs. (1) and (2) above, shall, on conviction, be punishable with imprisonment for a term not exceeding six months or with fine or with both.

(4)

No court shall take cognizance of any offence under this section, except upon complaint made in writing made by the Registrar or any officer authorised by him.

(5)

The Registrar may, for the reasons recorded in writing, compound any offence punishable under this section. On composition of any offence under this section, no proceedings shall be taken or continued in respect of such offence.

## Chapter VII

### Transition

26.

### Recognition.

(1)

Notwithstanding anything contained in this Act, an Association undertaking games or sports activities at State or District level and is already registered under the Rajasthan Societies Registration Act, 1958 (Act No. 28 of 1958) shall be entitled, to opt to be registered and recognized under this Act, and to receive a certificate thereof on application to the Registrar, and within thirty days from the date of commencement of this Act shall amend its bye-laws to bring it in conformity with the provisions of this Act to the satisfaction of the Registrar, and submit all the documents specified in Schedule 'A' of this Act.

(2)

If no such application is made within thirty days of the commencement of this Act or if the bye-laws of the Sports Association covered under sub-section (1) are not brought in conformity with the provisions of this Act at the expiry of thirty days from the commencement of this Act, the Executive Body of the Sports Association shall be superseded by the Registrar and an Ad-hoc Executive Committee shall be appointed to manage the affairs of the Sports Association. Such an Ad-hoc Executive Committee shall call an Extraordinary General Meeting and get amended bye-laws approved within thirty days of taking charge, apply for registration under the provisions of this Act and then proceed to conduct fresh elections.

(3)

After the amendment in bye-laws, fresh elections shall be held within thirty days of such amendment in the cases where,-

(a)

such an amendment has been made after superseding the earlier elected Executive Body.

(b)

earlier elected Executive Body has been elected by a voting collegiums which comprised members other than those provided under this Act :

Provided that the voting collegiums and eligibility of elected persons for contesting elections of their affiliating Associations shall be determined on the basis of sub-section (4).

(4)

Notwithstanding anything contained in this Act, at the commencement of this Act, the Office Bearers of the Executive Bodies of various State Level Sports Associations and District Level Sports Associations shall be determined in the following manner for the purpose of conducting any fresh elections under sub-section (3):

(a)

For the State Level Sports Associations listed in Schedule 'B' of this Act, on the basis of the returns filed by the affiliated State Level Sports Associations with the Rajasthan State Sports Council and the record available with the Rajasthan State Sports Council either based on such returns or on the basis of records of the relevant District Sports Council on the date of commencement of this Act.

(b)

For the District Level Sports Associations, primarily on the basis of returns filed by the affiliated State Level Sports Associations with the Rajasthan State Sports Council and, if such returns are not available, on the basis of record of Affiliation available with the District Sports Council on the date of commencement of this Act.

(5)

Notwithstanding anything contained in this Act, the transition of the District Level Sports Associations Affiliated to a State Level Sports Association covered under this chapter and themselves not covered under this chapter may be allowed to be completed upto nine months of the registration certificate being granted to the concerned State Level Sports Association.

27.

Cessation of registration under Rajasthan Act No. 28 of 1958.

(1)

Notwithstanding anything contained in any other law for the time being in force, the registration of all the Sports Associations which are registered under the Societies Registration Act, 1958 (Act No. 28 of 1958) and have opted for registration and recognition under Section 26 shall cease to exist from the date of such option.

(2)

Notwithstanding the cessation of Registration of an Association under sub-section (1), all the claims accrued or liabilities incurred or proceedings initiated prior to the commencement of this Act shall be claimed, suffered or, as the case may be, continued as if the registration has not ceased to exist.

(3)

On cessation of registration of an Association under sub-section (1), the property of the association shall, subject to the bye-laws of the association, continue to vest in such persons or body of persons in whom the property vested immediately prior to the commencement of this Act.

#### Chapter VIII

#### Rights and Obligations of Sports Associations

28.

Right to participate.

- Every Sports Association shall have the right to participate in the sports activities conducted by the Sport Association to which it is affiliated subject to the provisions in the bye-laws and Regulations of the affiliating Sports Association.

29.

Obligations of the State Level Sports Associations.

- Every State Level Sports Association other than Rajasthan Olympic Association shall-

(1)

conduct at least one Inter-District State Championship, for the Seniors and Juniors every year;

(2)

send its players and teams to participate at the National Level;

(3)

arrange to provide round the year training and coaching facilities for the players either by itself or in association with Rajasthan State Sports Council;

(4)

arrange to give such prizes, scholarships, medals and other such facilities as would encourage the sports persons.

30.

Obligations of the District Level Sports Associations.

- Every District Level Sports Association other than a District Level Olympic Association shall-

(1)

conduct at least one District Level Championship each for the Seniors and Juniors every year;

(2)

send its players and teams to participate at the State Level;

(3)

arrange to provide training and coaching facilities for the player either by itself or in association with Rajasthan State Sports Council;

(4)

arrange to give such prizes, scholarships, medals and other such facilities as would encourage the sports persons.

#### Chapter IX

#### Miscellaneous

31.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules for carrying into effect the provisions of this Act.

(2)

All rules made under this Act shall be laid, as soon as may be, after they are so made, before the House of the State Legislature, while it is in session, for a period not less than fourteen days which may be comprised in one session or in two successive sessions and, if before the expiry of the session in which they are so laid or of the session immediately following, the House of the State Legislature makes any modification in any of such rules or resolves that any such rule should not be made, such rules shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of any thing previously done thereunder.

32.

Removal of difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by general or special order published in the Official Gazette, give such directions as are not inconsistent with the provisions of this Act and may appear to be necessary or expedient for the purpose of removing such difficulty:

Provided that the powers conferred under this section shall not be exercised after the lapse of three years from the date of enforcement of this Act.

33.

Protection of acts done under the Act.

- No suit, prosecution or other legal proceeding shall lie against the State Government or any authority or officer or servant of the State Government for any act done or purporting to be done, or for any action taken in carrying out the provisions of this Act or the rules made thereunder.

34.

Amendment in Schedule A, B and D.

- The following procedure shall govern any addition or alteration to and deletion from the list provided under Schedule 'A', Schedule 'B' and Schedule 'D':-

(1)

the Rajasthan State Sports Council may send a written advice to the Registrar after passing a Special Resolution.

(2)

upon receiving the written advice, the Registrar shall publish a notice of the proposed addition, alteration or deletion.

(3)

upon expiry of thirty days from the publication of such notice, the proposed amendment shall be considered by the State Government, and if the State Government thinks it fit, it may, by notification in the Official Gazette, amend the concerned Schedule:

Provided that all notifications issued under this sub-section shall be laid, as soon as may be after they are so issued, before the House of the State Legislature.

35.

Appeal.

(1)

Any Sports Association or person aggrieved by an order made by the Registrar under the provisions of this Act may appeal against the order to the Secretary to the Government, Department of Youth Affairs and Sports; within thirty days of such an order being made.

(2)

The decision of the Secretary to the Government, Department of Youth Affairs and Sports made in such an appeal shall be final and a revision against his order shall lie with the High Court within thirty days of such an order.

36.

Savings.

- All lawful actions taken or purported to have been taken by a Sports Association under the Rajasthan Societies Registration Act, 1958 (Act No. 28 of 1958) prior to the commencement of this Act, shall be deemed to have been taken by virtue of its being registered as a Sports Association under this Act.

37.

Insertion of Section 18-A, Rajasthan Act No. 28 of 1958.

- After the existing Section 18 of the Rajasthan Societies Registration Act, 1958 (Act No. 28 of 1958), the following new section shall be inserted, namely:-

"18-A. Power of Registrar to refuse or to cancel the registration of certain Societies. - (1) The Registrar shall refuse to register-

(a)

a Society under Section 3, or

(b)

the change of name made under Section 12-A.

if the main activities of the Society include Sports and the expression Rajasthan or the name of any District as a part of the proposed name of the Society.

(2)

If the name of a Society registered before the commencement of the Rajasthan Sports Associations (Registration, Recognition and Regulation) Act, 2005 (Act

No. 4 of 2005

) contains as part of its name the expression "Rajasthan" or the name of any District of the State or, such Society shall amend its name to remove Rajasthan or, as the case may be, the name of the district from the registered name of the Society within thirty days from such commencement.

(3)

If any Society fails to comply with the provisions of sub-section (2), the Registrar shall, after giving an opportunity of hearing to such Society, cancel the registration of such Society.

(4)

Cancellation of registration under sub-section (3) shall operate as if the members of such Society have resolved to dissolve the Society and the provisions of this Act shall apply accordingly.

38.

Repeal and Savings.

(1)

The Rajasthan Sports (Registration, Recognition and Regulation of Associations) Ordinance, 2004 (Ordinance No. 6 of 2004) is hereby repealed.

(2)

Notwithstanding such repeal, all actions taken or orders made under the said Ordinance shall be deemed to have been taken or made under this Act.

'A'

(See Sections 5, 26 and 34)

List of Documents necessary for Registration

1. List of members attested by a Magistrate or a Notary.

2. List of elected members of the Executive Body.

3. Certificate of Affiliation.

4. Memorandum and Bye-laws made in accordance with the provisions of this Act (in two copies).

5. Minutes of last general meeting.

6. In the case of an Association covered under chapter VII, an undertaking to bring the bye-laws in conformity with the provisions of this Act if the same has not been done on the date of application being made.

7. Up to date audited accounts for the immediately preceding financial year.

'B'

(See Sections 5, 26 and 34)

State Level Sports Associations eligible for Registration at the commencement of this Act

1. Rajasthan Archery Association.
2. Rajasthan Athletics Association.
3. Rajasthan Badminton Association.
4. Rajasthan Ball Badminton Association.
5. Rajasthan Basketball Association.
6. Rajasthan Billiards Association.
7. Rajasthan Body Building Association.
8. Rajasthan Boxing Association.
9. Rajasthan Bridge Association.
10. Rajasthan Carrom Association.
11. Rajasthan Chess Association.
12. Rajasthan Corf Ball Association.
13. Rajasthan Cricket Association.
14. Rajasthan Cycle Polo Association.
15. Rajasthan Cycling Association.
16. Rajasthan Disabled Cricket Association.
17. Rajasthan Equestrian Association.
18. Rajasthan Football Association.
19. Rajasthan Golf Association.
20. Rajasthan Gymnastic Association.
21. Rajasthan Handball Association.
22. Rajasthan Hockey Association.
23. Rajasthan Kabaddi Association.
24. Rajasthan Kho-Kho Association.
25. Rajasthan Net Ball Association.
26. Rajasthan Power Lifting Association.
27. Rajasthan Rifle Shooting Association.
28. Rajasthan Shooting Ball Association.
29. Rajasthan Softball Association.
30. Rajasthan Swimming Association.
31. Rajasthan Table Tennis Association.
32. Rajasthan Table Tennis Association.
33. Rajasthan Tennis Association.
34. Rajasthan Tennis Ball Cricket Association.
35. Rajasthan Volleyball Association.
36. Rajasthan Weight Lifting Association.
37. Rajasthan Wrestling (Free Style) Association.
38. Rajasthan Wrestling (Indian Style) Association.
39. Rajasthan Women's Cricket Association.
40. Rajasthan Women's Hockey Association.

'C'

(See Section 15)

Qualifications for contesting elections and holding a in the Executive Body of a Sports Association

1. He/She shall be a citizen of India.
2. He/She should possess any one of the qualifications listed below within the area of operation of the concerned Sports Association-
  - (a)  
has been born there,
  - (b)  
is ordinarily resident there,
  - (c)  
is working there,
  - (d)  
possesses property there.
3. He/She has not been convicted in any criminal case.
4. He/She has not been declared insolvent.

'D'

(See Section 34)

Mandatory Record to be maintained by a Sports Association

1. Register of Members.
2. Minute Book of the meetings of the Executive Body.
3. Minute Book of the meetings of the General Body.
4. Register of Accounts.
5. Record of activities, events and achievements.

Related AI tags, queries and research notes

Translation